

24STCV22395 24STCV22395

County: los-angeles

Division: Civil Law and Motion

Department: 415

Hearing date: 2026-09-17

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Case Number: 24STCV22395 Hearing Date: September 17, 2026 Dept: 415

Tentative Ruling

Judge Rolf M. Treu, Department 415

HEARING DATE: September 17, 2026 TRIAL DATE: Not set.

CASE: Alvarez v. Los Angeles Unified School District

CASE NO.: 24STCV22395

MOTION TO ENTER JUDGMENT

MOVING PARTY/PARTIES: Defendant Los Angeles Unified School District

RESPONDING PARTY/PARTIES: None

PROOF OF SERVICE:

Correct Address: Yes.

Served electronically on June 8, 2026 for original hearing date of December 22, 2026, advanced to this date in this Court's order of June 17, 2026.

CASE HISTORY:

September 3, 2024: Complaint filed.

August 26, 2025: First amended complaint filed.

March 12, 2026: Defendant's motion for judgment on the pleadings granted with leave to amend.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

In its order of March 12, 2026, the Court granted the motion for judgment on the pleadings by Defendant Los Angeles Unified School District ("Defendant") with leave to amend. Now, Defendant moves for entry of judgment against Plaintiff Daniel Alvarez ("Plaintiff"). Plaintiff has not opposed the motion.

TENTATIVE RULING:

Defendant's motion for entry of judgment is GRANTED.

Moving party to give notice.

DISCUSSION:

In its order of March 12, 2026, the Court ordered Plaintiff to file an amended complaint within 20 days. Plaintiff did not do so. Subsequently, in its order of June 17, 2026, the Court directed Plaintiff to file his amended complaint within 20 days of that date, per the stipulation of Defendant. To date, Plaintiff has not filed an amended complaint. As such, Defendant is entitled to entry of judgment. (Code Civ. Proc., § 438, subds. (h)(4)(C), (i)(1)(B).)

Accordingly, Defendant's motion for entry of judgment is GRANTED.

Moving party to give notice.

IT IS SO ORDERED.

Dated: September 17, 2026 _____

Rolf M. Treu

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at SMCDept415@lacourt.ca.gov by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.